10 *Working, Shirking, and Sabotage in Times of Democratic Backsliding: An Experimental Study in Brazil*

JOÃO VICTOR GUEDES-NETO AND B. GUY PETERS

Introduction

A Grande Família (in English, the Great Family) was a popular sitcom that aired from 2001 to 2014 on Globo, Brazil's most popular TV channel. The show focused on a stereotypical middle-class family headed by Lineu Silva, a 50-year-old veterinarian working as health inspector at a local public bureaucracy. Lineu represented the Weberian ideal type of civil servant: methodical, law-abiding, honest, and politically correct at all times. However, his boss and friend, Mendonça, was far from sharing this profile. This manager was a prankster and an opportunist who did not like work. Whenever possible, he used the local bureaucracy for his own benefit. Whereas this dichotomy is not representative of the entire public service, similar satires have frequently been presented in global popular culture (e.g. *Spin City* and *Parks and Recreation*, to name a couple of others in the American context).

Shirking and sabotage are usually portrayed on TV and, to a great extent, in the academic literature, as negative behaviors. However, these potential reactions also place bureaucrats in a strategic gatekeeping position. In fact, the ability to refuse to implement the will of policymakers may in some circumstances contribute to the stability of democratic institutions. Take, for instance, the case of elected officials who promote illiberal reforms, as are discussed in other chapters of this book. In these scenarios, shirking and sabotage become normatively desirable because they may avoid democratic backsliding. However, they come at the expense of personal risk, such as retaliation from the ruling party or their superiors in the organization. In this sense, one must verify empirically the willingness of bureaucrats to act as gatekeepers of democracy.

Downloaded from https://www.cambridge.org/core. University of Pittsburgh, on 18 Sep 2021 at 16:04:14, subject to the Cambridge Core terms of use, available at https://www.cambridge.org/core/terms. https://doi.org/10.1017/9781009023504.011

Do bureaucrats work, shirk, or sabotage when assigned to implement undemocratic projects? This chapter proposes to answer that question based on an experimental study conducted in two Brazilian cities. It aims at capturing bureaucrats' intention to shirk or sabotage when faced with projects that restrict democratic rights, such as the freedoms of press and expression. Furthermore, it considers a series of heterogeneous treatment effects, including type of government job, leadership position, political appointment, discretion, and expected gains in a different job in the private sector.

Brazil is an ideal case to assess the bureaucratic response to democratic backsliding. In October 2018, the country elected the right-wing populist Jair Bolsonaro. A former army officer and long-term legislator, the current president has spent his political career expressing admiration for the military regime that controlled the country from 1964 to 1985 (Duque and Smith 2019). In power since January 2019, Bolsonaro formed a cabinet with a high proportion of military officers and has constantly attacked the press and the Supreme Court (Amorim Neto and Pimenta 2020). This led several authors to suggest that Brazil is on the path toward autocratization (Lührmann and Lindberg 2019; Skaaning 2020).

Amorim Neto and Pimenta (2020) identify pertinent similarities between Bolsonaro and Jânio Quadros – the last president elected before the military coup in 1964. Yet, as Bermeo (2016) explains, the nature of democratic backsliding is somewhat different now than in previous decades. While Linz's (1990) main fear was that of new military interventions, the modern form of movement toward autocracy is more subtle. Nowadays, illiberal politicians engage in reforms that allow executive aggrandizement and strategic electoral manipulation, rather than following classic interventions such as coups d'état and election-day frauds (Bermeo 2016).

Schmitter (1971, 1972) argues that many bureaucrats were co-opted by the military dictatorship that ended in 1985. One explanation for this was the brutality of the regime. Refusing to cooperate could mean not only loss of employment, but also imprisonment. Now, these types of extreme punishment are unlikely to exist. Yet, bureaucrats are still tasked to implement the policies enacted by the presidency. Following the propositions of this book for system transformation research, this responsibility for implementation positions public employees as central players in the prevention of democratic backsliding.

Downloaded from https://www.cambridge.org/core. University of Pittsburgh, on 18 Sep 2021 at 16:04:14, subject to the Cambridge Core terms of use, available at https://www.cambridge.org/core/terms. https://doi.org/10.1017/9781009023504.011

Consider the recent appointment of the chief of the Public Prosecutor's Office in September 2019. Appointments for this position often follow the recommendation of the Associação Nacional dos Procuradores da República (the prosecutors' national association). However, Bolsonaro decided to choose a political ally, Augusto Aras, who was not on the list of names suggested by the association. Since his appointment, Aras has engaged in a number of confrontations with other prosecutors (Teófilo and Souza 2020) and has lobbied against Operação Lava Jato (Shalders 2020), the national effort to punish money laundering that has seen several politicians jailed, including former president Luiz Inácio Lula da Silva.

The reactions of the bureaucracy against Bolsonaro's chief prosecutor range from shirking to sabotage. The list of confrontations includes, among others, a public petition signed by prosecutors objecting to the appointment of Aras (Oliveira 2020) and an open letter criticizing his recent policies and discourses read by subprosecutors during a meeting of the Conselho Superior do Ministério Público (the bureaucracy's main council) (Camarotti 2020). Evidence of shirking is identified in the attempt of Aras to appoint new prosecutors to Operação Lava Jato as a means of weakening the autonomy of those civil servants who have been working in this investigation since 2014 (O Antagonista 2020). Whereas this would be seen as a dream job to many prosecutors, only twelve careerists applied for the position.

In the following sections of this chapter, we develop a theory of bureaucratic response to democratic backsliding and test whether this anecdotal illustration is representative of the Brazilian bureaucracy. This chapter is divided as follows. First, we develop our theory based on Brehm and Gates' (2002) working, shirking, and sabotage triad. Second, we hypothesize that bureaucrats should be willing to shirk or sabotage if faced with a project that undermines political rights. We further discuss how personal and professional characteristics may influence these results. Then, we present our research design, which includes two list experiments and one vignette experiment. Finally, we present our results. We demonstrate significant findings that confirm six out of our nine theoretical expectations.

Working, Shirking, or Sabotage

The notion that politics and administration should be treated as separate spheres is not new. Wilson (1887, p. 212) portrays the latter as the

Downloaded from https://www.cambridge.org/core. University of Pittsburgh, on 18 Sep 2021 at 16:04:14, subject to the Cambridge Core terms of use, available at https://www.cambridge.org/core/terms. https://doi.org/10.1017/9781009023504.011

"detailed and systematic execution of public law," and therefore apolitical. However, as argued by Peters (2018a, p. 164), "this presumed separation of administration and politics allows them [public administrators] to engage in politics." This means that once bureaucrats are not directly accountable to the public, they use their technical and legal knowledge to affect policymaking. In this sense, their criteria may replace the ones expected by political leaders.

Brehm and Gates (2002) offer three broad paths which bureaucrats may use to influence the policy process: working, shirking, and sabotage. The authors affirm that government employees are moved by functional preferences – that is, the feeling that they are accomplishing something important. Therefore, they may be interested in taking part in the policies they are supposed to implement. Take, for instance, Lipsky's (1980) suggestion that teachers are the street-level ministers of education. These civil servants have at least two strong motivations to work: they are educating cocitizens, and they directly represent the State to the population. Nonetheless, what happens when they do not believe that their efforts are being directed toward something desirable?

The literature offers some insights. Gailmard and Patty (2007, p. 874) divided bureaucrats into two types: "policy-motivated ('zealots') or policy indifferent ('slackers')." Consider the case of zealots. If they hold the same ideological preferences as the principal and invest in professional expertise, the bureaucracy's output should be greater (Gailmard and Patty 2007). However, if they hold different policy preferences than the principal, zealots' expertise may be superior to that of the principal. This accumulated information and experience would allow the administration to guide the policy process along a different path than the one expected by the political class (Downs 1965).

Some insights are provided by the literature on public service motivation as well (see Perry, Hondeghem, and Wise 2010). This includes, for instance, the "desire to do the job" (Wilson 1989, p. 159). Whilst several studies point out a positive correlation between bureaucrats' motivation and work performance (Andersen, Heinesen, and Pedersen 2014; Bellé 2012; Vandenabeele 2009), the results are mixed. A recent study found that public service motivation could not predict measures of job attendance, and in-role and extra-role performance (Wright, Hassan, and Christensen 2017). Still, public sector motivation is not

Downloaded from https://www.cambridge.org/core. University of Pittsburgh, on 18 Sep 2021 at 16:04:14, subject to the Cambridge Core terms of use, available at https://www.cambridge.org/core/terms. https://doi.org/10.1017/9781009023504.011

the main variable of interest when dealing with the interactions between politics and the administration. Demotivation may indeed be related to political conflicts, but the variables should not be treated as synonymous. The core interest of the present chapter is political compliance (or not) with the principal.

Naturally, we acknowledge that shirking and sabotage are not the only outputs of political disagreement. The administration of Ronald Reagan in the United States functions as a good example. The Public Choice School predicts that bureaucrats' policy preferences are related to self-interest. This should lead government employees to fight for a larger public sector that grants themselves greater power and budgets (Niskanen 1971; Tullock 2004). If this assumption is correct, Reagan worked against the self-interest of bureaucrats. He implemented reforms that aimed at reducing the size of the government. Thus, bureaucrats' rational behavior should have been to either shirk or sabotage. Whereas Aberbach and Rockman (2000) confirm that serious conflicts indeed took place during this administration, Golden (2000, p. 163) says that "compliance was the predominant [bureaucratic] response."

Peters and Pierre are critics of the Public Choice approach to the shirking hypothesis (see Peters and Pierre 2017; Pierre and Peters 2017). According to them, the "Brehm and Gates' study has become somewhat of a standard reference for those who argue in support of the shirking thesis" (Pierre and Peters 2017, p. 13). However, as they highlight, Brehm and Gates themselves have rejected it: "the assumption that subordinates necessarily prefer shirking over working is unnecessarily simplistic ... Workers will prefer producing some outputs over other outputs; they don't necessarily shirk at every opportunity" (Brehm and Gates 2002, p. 43). But does this hold true if they believe some fundamental values of democracy are being threatened?

Public Administration in Times of Democratic Backsliding

In the present work, we test whether political disagreement between politicians and bureaucrats leads to working, shirking, or sabotage. However, we take into consideration Peters and Pierre's critiques of the Public Choice literature in public administration. We also accept three suggestions from recent contributions to the study of the policy process: a greater interaction between comparative public administration

Downloaded from https://www.cambridge.org/core. University of Pittsburgh, on 18 Sep 2021 at 16:04:14, subject to the Cambridge Core terms of use, available at https://www.cambridge.org/core/terms. https://doi.org/10.1017/9781009023504.011

and comparative politics (Peters 2018b), the consideration of democracy as an important element of policy studies (Ingram, deLeon, and Schneider 2016), and the use of experiments to assure greater causal relationships (Peters 2018b).

First, Peters (2018b) suggests that students of the policy process could benefit from a greater integration with the field of comparative politics. He cites, for instance, the work of Tsebelis (2002) on veto players – that is, actors that have the power to block a political agenda. In this sense, Peters (2018b) highlights the importance of institutional design, but also creates an avenue for further explorations of the role of bureaucrats as veto players in the policy process. If they are indeed capable of shirking or sabotaging, decision-makers should pay particular attention to government employees when passing a law. Civil servants may individually function as veto players, for instance at the street level, when they refuse to comply with the rules or use their own criteria to implement a policy (Zacka 2017). Furthermore, scholars should consider not only the self-interest of individual bureaucrats, but also their collective interests. For instance, government employees tend to respond to organizational influences such as loyalty, professional norms, and peer-pressures (Pierre and Peters 2017).

Second, Ingram, deLeon, and Schneider (2016, p. 175) refer to democracy in the field of policy studies as "the elephant in the corner." It is relevant, visible, and, in many instances, wounded, but still not discussed directly by many scholars. As the authors argue, there are several policies that directly affect democracy, such as in matters of redistribution, participation, and civil liberties. Indeed, this topic should be approached particularly in times of democratic backsliding (Levitsky and Ziblatt 2018b; Mainwaring and Pérez-Liñán 2014). Yesilkagit (2018) cites the emergence of populist parties and politicians in countries such as Italy, Hungary, Poland, and the United States, as well as the cases of Venezuela's socialist regime and the recent Brexit vote, as examples of democratic backsliding. This context is ideal for studies relating public bureaucracies to the sustainability of democracy.

So far, we have presented at least four elements of interest: shirking and sabotage, collective interests, veto players, and democratic backsliding. They lead to the core question of this research: *Do bureaucrats work, shirk, or sabotage when assigned to implement undemocratic projects?* Here, civil servants are faced with a task that does not necessarily go against their rational self-interest. Their reaction is

Downloaded from https://www.cambridge.org/core. University of Pittsburgh, on 18 Sep 2021 at 16:04:14, subject to the Cambridge Core terms of use, available at https://www.cambridge.org/core/terms. https://doi.org/10.1017/9781009023504.011

a matter of collective interest. By supporting an undemocratic agenda, the government employee may be acting against the collective interest of the population of which she is a part. Alternately, if she shirks or sabotages, she could be functioning as a veto player in defense of democratic institutions. Whereas shirking and sabotage are normatively undesirable in the narrative of most policy scholars, here they could be considered positive behaviors.

We answer this research question in relation to a third suggestion. Peters (2018b, p. 97) proposes that experiments "offer potentially greater understanding of causal relationships." Many scholars of the social sciences have engaged in this method because it assures stronger internal validity, thus allowing more precision in the causal inference (McDermott 2002). However, as Peters (2018b) highlights, there is the risk of compromising external validity. To constrain this, we consider heterogeneous treatment effects – that is, pretreatment observational data "to describe how treatments differ across categories" (Kam and Trussler 2017, p. 729). This allows us to point out how the treatment interacts with institutional and individual characteristics of interest.

As summarized in the next section, we propose that bureaucrats will be more prone to shirk or sabotage if assigned to work on a project that undermines democracy than when faced with other tasks. However, given the risks involved in sabotaging an initiative, we expect the shirking hypothesis to deliver stronger results. Overall, we are assuming that bureaucrats should perceive undemocratic projects as undesirable, thereby providing incentives to work against their principal – that is, the elected maker.

We also expect that these treatment effects will be mediated by preexisting characteristics.[1] First, we hypothesize that tenured civil servants should be more affected by an undemocratic task than untenured employees. As noted by Pierre and Peters (2017, p. 167), "shirking is more likely in traditional career civil service systems in which civil servants have tenure and may have less motivation to perform." The fact that there is a lesser risk of losing their job may afford greater flexibility to deny compliance with principals. However, the contrary should be true for civil servants who are political appointees or responsible for supervising peers. Whereas promotion and appointment are not always granted to the principal's ideological clones (Bertelli and

Downloaded from https://www.cambridge.org/core. University of Pittsburgh, on 18 Sep 2021 at 16:04:14, subject to the Cambridge Core terms of use, available at https://www.cambridge.org/core/terms. https://doi.org/10.1017/9781009023504.011

Feldmann 2007), peer pressure and loyalty should make these individuals more prone to comply with the principal.

Finally, we expect that an undemocratic project should increase the propensity of shirking more among bureaucrats that enjoy greater levels of discretion and think that they could earn a higher salary in the private sector. The latter hypothesis follows a similar argument to the one regarding tenured employees. Once the bureaucrat believes she could enjoy similar or greater benefits in a different job, she should be more willing to risk her current employment. However, this variable may also demonstrate that the civil servant is in the public service due to self-selection, and therefore potentially more influenced by functional preferences (i.e. the willingness to contribute to desirable, democratic, goals). Discretion, on the other hand, could simply function as the basic means to allow shirking.

Summary of Hypotheses

We developed a series of hypotheses about the attitudes and behaviors of civil servants when faced with undemocratic policies. We are interested in two possible motivations for citizens to shirk or sabotage. One is that a policy is illiberal or undemocratic; the second is that the project may be bad for the country in other policy terms. In this experimental setting we do not, of course, observe actual behaviors, but consider the willingness of civil servants to shirk or sabotage.

Hypothesis 1: Bureaucrats are more prone to shirk than to work when assigned to work on a project that restricts political liberties such as freedom of expression or freedom of the press.

Hypothesis 2: Bureaucrats are more prone to sabotage than to work when assigned to work on a project that restricts political liberties such as freedom of expression or freedom of the press.

Hypothesis 3: Bureaucrats are more prone to shirk than to sabotage when assigned to work on a project that restricts political liberties such as freedom of expression or freedom of the press.

Hypothesis 4: Bureaucrats are more prone to shirk if assigned to work on a project that is perceived as bad for the country and harmful to citizens' political rights than if assigned to a project that is bad for the country but not harmful to citizens' political rights.

Downloaded from https://www.cambridge.org/core. University of Pittsburgh, on 18 Sep 2021 at 16:04:14, subject to the Cambridge Core terms of use, available at https://www.cambridge.org/core/terms. https://doi.org/10.1017/9781009023504.011

Hypothesis 5: Bureaucrats have a higher propensity to shirk in the face of projects that restrict political rights in comparison to projects that do not when they are tenured (*servidor público de carreira* in Brazil) than when they are not tenured.

Hypothesis 6: Bureaucrats have a lower propensity to shirk in the face of projects that restrict political rights in comparison to projects that do not when they are responsible for supervising other civil servants than when they are not responsible for supervising others.

Hypothesis 7: Bureaucrats have a lower propensity to shirk in the face of projects that restrict political rights in comparison to projects that do not when they are political appointees (*cargo de confiança*) than when they are not political appointees.

Hypothesis 8: Bureaucrats have a higher propensity to shirk in the face of projects that restrict political rights in comparison to projects that do not when they have high discretion than when they do not have it.

Hypothesis 9: Bureaucrats have a higher propensity to shirk in the face of projects that restrict political rights in comparison to projects that do not when they think they could earn a higher salary in the private sector than when they do not think that.

Experimental Design

Case Selection

The experiments were conducted with convenience samples of Brazilian bureaucrats from two medium-sized cities: one in the southern Brazilian state of Santa Catarina (hereafter, SC), and another in the southeastern state of Minas Gerais (hereafter, MG). In cooperation with the local administration, the municipal government sent out an e-mail inviting every bureaucrat to answer an online questionnaire. The response rate was notably low: 68 full responses in SC and 60 in MG out of roughly 2,500 bureaucrats in each city. However, this does not impact the results: first, because we did not intend to make these samples nationally (or locally) representative, thus proper randomization across groups should eliminate issues of

Downloaded from https://www.cambridge.org/core. University of Pittsburgh, on 18 Sep 2021 at 16:04:14, subject to the Cambridge Core terms of use, available at https://www.cambridge.org/core/terms. https://doi.org/10.1017/9781009023504.011

systematic bias; second, as will be further explained, because the tests resulted in satisfactory statistical results.

Brazil represents an ideal case for several reasons. In recent years, a left-wing president was impeached, and her predecessor from the same political party arrested. Santos and Guarnieri (2016) label the former as a parliamentary coup and consider many of its procedures as fascist (see Avelar 2017 for a different perspective). Pérez-Liñán (2018) and Nunes and Melo (2017) argue that whereas democracy has not been put at risk during these events, there was certainly a stark political crisis. This possible democratic backsliding was exacerbated by the 2018 election. In October 2018, the right-wing candidate Jair Bolsonaro was elected president. Classified as authoritarian and populist in recent papers (Hunter and Power 2019; Levitsky 2018), the new president has repeatedly praised the military dictatorship (1964–1985) and spoken against human rights.

Whilst Brazilian democracy had enjoyed relatively high levels of stability in the years before the political crisis (Nunes and Melo 2017), the narrative of democratic backsliding was often present in the public sphere. In 2004, only 63 percent of the population considered the left-wing President Lula to be democratic (Folha de São Paulo 2004b). In the same year, Folha de São Paulo (2004a), one of Brazil's most popular newspapers, asked sectoral leaders whether Lula's government was undemocratic. Back then, the secretary general of the Confederação Nacional dos Trabalhadores do Serviço Público Federal (a major union of federal civil servants) and the president of the Brazilian bar association argued that the country was heading along an authoritarian path. Some examples presented in the national media included the trials to regulate the press (Nery, Seabra, and Franco 2011) and to reduce the powers of the legislative (Senado Federal 2014).

This information led to the assumption that the debate on the erosion of democratic institutions has been salient for a reasonably long time on both sides of the political spectrum, and has been intensified by the recent election of Jair Bolsonaro. Therefore, it is adequate to study the potential reactions of Brazilian bureaucrats if assigned to implement a project that is perceived as undemocratic.

It must be highlighted that the interaction between the Brazilian public service and authoritarian governments has already been the focus of previous studies. Schmitter demonstrated a strong relationship

Downloaded from https://www.cambridge.org/core. University of Pittsburgh, on 18 Sep 2021 at 16:04:14, subject to the Cambridge Core terms of use, available at https://www.cambridge.org/core/terms. https://doi.org/10.1017/9781009023504.011

between high-level bureaucrats' corporatist organizations and political elites from 1930 to 1965 (Schmitter 1971), and the public service and the military dictatorship after the coup in 1964 (Schmitter 1972). In both cases, the public sector and their organizations were either co-opted or threatened into compliance with the government. Here, as discussed earlier, we propose a "change of heart" in the bureaucratic reaction to undemocratic policy change: first, because the level of authoritarianism in earlier periods was starkly higher than since the redemocratization of the 1980s; second, because our measurement of the intention to shirk or sabotage is different than actually engaging in such behaviors. For instance, as we shall discuss later, we do not consider the costs of dissent.

The Experiments

List Experiments

As subjects enter the online questionnaire, right after two eligibility questions, they are presented with a list experiment. They are told that:

> The following four scenarios are common in public departments around the world. There is evidence that some of these scenarios demotivate civil servants, leading them to dedicate fewer efforts than they would dedicate to other activities. For instance, they may try to assign another colleague to do these tasks, they may do them partially, miss deadlines, or do not do them.

The control group reads four baseline situations that potentially demotivate civil servants when carrying out regular tasks:

> A civil servant was assigned to work on a project that . . .
>
> . . . is very similar to every other project that she/he has always worked on.
> . . . favors only her/his own political group.
> . . . is entirely new to her/him, requiring training and additional efforts.
> . . . creates a political advantage to groups that she/he is against.

They are required to answer how many of these tasks would make an average bureaucrat "dedicate fewer efforts to the project in comparison to other activities" (i.e. to shirk). The treatment group, on the other hand, will have access to five situations: the same four as the control group, plus "a project that restricts citizen's political rights, for

Downloaded from https://www.cambridge.org/core. University of Pittsburgh, on 18 Sep 2021 at 16:04:14, subject to the Cambridge Core terms of use, available at https://www.cambridge.org/core/terms. https://doi.org/10.1017/9781009023504.011

instance, freedom of expression or press." They should also state how many projects should make an average bureaucrat shirk (**list_shirk**^{2}). The difference between the outcome of each group is the percentage of subjects affected by the treatment. This strategy is helpful to reduce the impact of social desirability bias, given that respondents are not required to say which specific tasks would make them shirk.

In addition, we use the same design to ask about the possibility of sabotage (**list_sabotage**). Subjects are presented with the same situations after reading the following introduction:

Now, consider the possibility of sabotage. A common reaction in different public departments is that some civil servants decide to work against a project which they were assigned to work on. In other words, instead of implementing it, they decide to do whatever they can so that the project does not move forward.

The question is worded as follows:

In your opinion, how many of the previous scenarios would lead a standard civil servant to work against the project instead of implementing it? **Please, answer only the number of scenarios**.

It should be acknowledged that expected behavior and actual behavior may starkly differ. The costs to say that one would shirk or sabotage in the face of an undemocratic project is lower than to actually shirk or sabotage. However, this design captures the intention to engage in such behaviors in the face of undemocratic projects in comparison to other situations. In this sense, this measurement is still valid for the purposes of this research.

Vignette Experiments

At the end of the questionnaire, the same subjects participate in a vignette experiment. This is designed as follows:

Paulo is a civil servant in Brazil. Recently, he was assigned to work on a project which he disagrees with. According to Paulo, "***[this project does not reduce the freedom of expression and of the press of the population, but / this project reduces the freedom of expression and of the press of the population, and]*** it is still terrible for the country."

Using his own autonomy, Paulo decided to **not carry out** his tasks related to this project.

Downloaded from https://www.cambridge.org/core. University of Pittsburgh, on 18 Sep 2021 at 16:04:14, subject to the Cambridge Core terms of use, available at https://www.cambridge.org/core/terms. https://doi.org/10.1017/9781009023504.011

If you were in Paulo's shoes, what is the probability that you would have **not carried out** your tasks related to this project as well? Please, use the 0–10 scale, where 0 means "very improbable" and 10 "very probable."

After reading about Paulo, a fictional civil servant, subjects receive a vignette affirming that the project he was assigned to work on is not perceived to be harmful to the freedoms of expression and of the press. The treatment group, on the other hand, is told that Paulo considers the project harmful to these freedoms. To provide justification for a potentially socially undesirable situation, we affirm that Paulo decided to shirk. Finally, we ask how probable it is that subjects would also be willing to shirk (**vign_shirk**). As in the case of the list experiment, the difference between the outcome of the treatment and the control groups is the effect of interest. Again, the reader should bear in mind that intended and actual behavior may differ. Thus, this design only captures differences in the intention to shirk in face of different scenarios.

Covariates and Heterogeneous Treatment Effects

Before the list experiment, subjects are asked about their age range[3] (**age**) and whether they work for the public sector. Subjects below 18 years old or not working for the public sector are then excluded from further participation. In between the list and the vignette experiments, we ask questions related to individual and institutional characteristics. They regard discretion[4] (**discretion**), administrative level (**admin_level**), administrative power (**power**), years of experience[5] (**experience**), level of education (**education**), expected salary difference if working for the private sector[6] (**salary**), gender (**male**), her location (**state**), and whether the subject supervises other people (**boss**), is a tenured civil servant (**tenure**), and a political appointee (**appointee**). These questions will appear in a randomized order.

Methods of Analysis

We analyze the results using a two-tailed t-test between the outcomes of different groups (i.e. difference of means) and OLS regression analyses. Following Table 10.1, we are interested in the effect of each treatment – that is, A-B (H_1), C-D (H_2), and E-F (H_4), which we expect to be positive, as well as in the difference between (A-B)-(C-D) (H_3), which

Downloaded from https://www.cambridge.org/core. University of Pittsburgh, on 18 Sep 2021 at 16:04:14, subject to the Cambridge Core terms of use, available at https://www.cambridge.org/core/terms. https://doi.org/10.1017/9781009023504.011

Table 10.1 *Average treatment effects*

	Treatment	Control	Hypothesis
List (shirk)	A	B	1: A>B
List (sabotage)	C	D	2: C>D
Vignette (shirk)	E	F	4: E>F

Source: designed by the authors.

Table 10.2 *Heterogeneous treatment effects*

	Hypothesis
tenure	5: (E-F) is greater if tenure=1 than if tenure=0
boss	6: (E-F) is lower if boss=1 than if boss=0
appointee	7: (E-F) is lower if appointee=1 than if appointee=0
discretion	8: the higher discretion is, the higher is (E-F)
salary	9: the lower salary is, the higher is (E-F)

Source: designed by the authors.

we also expect to be positive. The heterogeneous treatment effects will be analyzed using two-tailed t-tests taking into consideration the shirking list experiment.[7] The expected results are described in Table 10.2. In the final work, the results will be presented per public department and pooled.

Each regression will have the outcome of interest as the dependent variable – that is, responses for the shirking list experiment, sabotage list experiment, and vignette experiment. The independent variable of interest is a dichotomous variable for the treatment, where 1 means treated and 0 is the control group. The remaining data shall be used as control variables only if balance across groups is not achieved through the randomization process.

Results

On average, the convenience sample so far is primarily composed of females who are not political appointees and do not supervise other

Downloaded from https://www.cambridge.org/core. University of Pittsburgh, on 18 Sep 2021 at 16:04:14, subject to the Cambridge Core terms of use, available at https://www.cambridge.org/core/terms. https://doi.org/10.1017/9781009023504.011

bureaucrats. They tend to be between 32 and 45 years old and have between 6 and 15 years in the public sector. Mostly, they believe that their level of discretion is medium to high and that they would earn more or a similar salary if they were working in the private sector. Even though these characteristics may not be representative of the general population of their fellow bureaucrats, balance across groups was achieved in all categories (Table 10.3). Thus, this validates the randomization strategy.

As subjects entered the online questionnaire, they were presented with the list experiment that assesses their willingness to shirk in the face of a number of situations. Whereas the control group only sees four options, the treatment group is presented with an additional alternative. As explained in the previous section, subjects are asked to state how many items in the list would make an average public sector employee shirk. According to the responses of the 128 subjects who were randomly distributed across the two groups, 84 percent of the bureaucrats in this convenience sample believe that an average civil servant would shirk if assigned to work on a project that is perceived to undermine rights such as the freedoms of press and expression (Figure 10.1). This confirms H_1.

Whereas this result is already considerably strong, the sabotage treatment yields even stronger effects. The difference of means across groups is 1.04 (Figure 10.1). This supports H_2. First, it means that subjects expect bureaucrats to sabotage more than to shirk in the face of undemocratic projects. Second, undemocratic projects have a triggering effect which leads respondents to consider sabotaging a normal behavior in the face of other projects as well. In other words, making both sabotage and democratic backsliding salient creates an additional incentive to fight against other undesirable projects.

The results from the pooled sample reject H_3 – that is, the proposition that the treatment effects would be greater for shirking than for sabotage. However, when the same tests are conducted considering each of the cities, the findings vary (Figure 10.2). In both cases, the first two hypotheses are confirmed. However, the stark increase in post-treatment sabotage is driven by SC. In MG, responses follow the hypothesized expectation that post-treatment shirking should be greater than sabotage. This suggests that bureaucrats may hold different preferences in each of these cities.

Downloaded from https://www.cambridge.org/core. University of Pittsburgh, on 18 Sep 2021 at 16:04:14, subject to the Cambridge Core terms of use, available at https://www.cambridge.org/core/terms. https://doi.org/10.1017/9781009023504.011

Downloaded from https://www.cambridge.org/core. University of Pittsburgh, on 18 Sep 2021 at 16:04:14, subject to the Cambridge Core terms of use, available at https://www.cambridge.org/core/terms. https://doi.org/10.1017/9781009023504.011

Table 10.3 *Balance table*

	List			Vignette		
	Control	Treatment	Difference	Control	Treatment	Difference
Age	3.43	3.37	0.06	3.00	3.47	0.47
Male	0.21	0.25	0.04	0.29	0.19	0.10
University	3.34	3.48	0.14	3.42	3.33	0.09
Tenure	0.81	0.78	0.02	0.81	0.81	0.01
Boss	0.35	0.35	0.00	0.29	0.35	0.06
Appointee	0.29	0.28	0.02	0.24	0.30	0.06
Experience	2.51	2.33	0.18	2.18	2.46	0.27
Discretion	6.15	6.53	0.39	6.42	6.19	0.23
Salary	1.82	1.90	0.08	1.92	1.86	0.06
N	68	60	-	38	57	-

Data for the vignette groups only considers subjects that passed the manipulation check. None of the differences of means is significant at conventional levels.
Source: calculated based on own data.

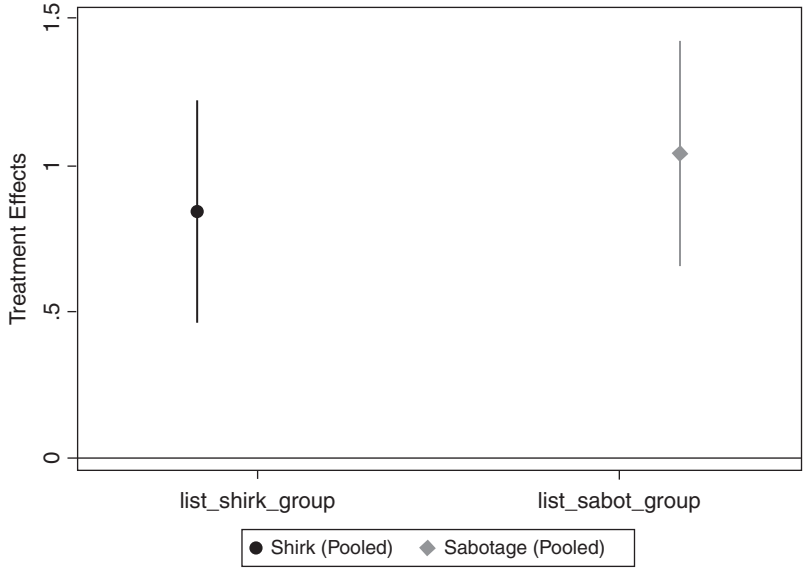


Figure 10.1 List experiments (shirk and sabotage)
The vertical line on the left represents the treatment effects of the shirking list experiment. The vertical line on the right represents the treatment effects of the sabotage list experiment.
Source: calculated based on own data.

We present the results for the vignette experiment in Figure 10.3. Here, subjects read the fictional story of Paulo, a civil servant who decided to shirk when assigned to work on a project that he considered to be terrible for the country. Respondents in the control group were told that the project did not harm the freedoms of press and expression, while treated subjects were told that this project did harm such rights. First, our manipulation seems to have caused confusion in some subjects in the control group. Out of 64 subjects assigned to this control vignette, only 38 remembered (or noticed) that the project did not pose a threat to the rights of press and expression. It is possible that some of them did not read the vignette carefully enough to perceive the negative phrase. In the treatment group, 57 out of 64 subjects passed the manipulation check. Second, in both cases – that is, considering the full sample and only subjects who passed the manipulation check – differences across groups are not significant at conventional levels. We present these outcomes in Table 10.5.

Downloaded from https://www.cambridge.org/core. University of Pittsburgh, on 18 Sep 2021 at 16:04:14, subject to the Cambridge Core terms of use, available at https://www.cambridge.org/core/terms. https://doi.org/10.1017/9781009023504.011

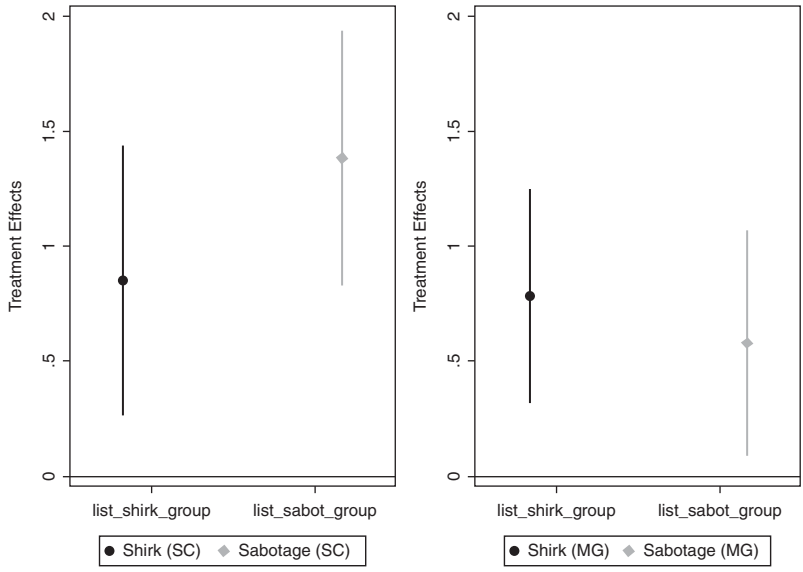


Figure 10.2 List experiments (shirk and sabotage) in SC and MG
The graph on the left represents the treatment effects for both experiments in SC. On the right, the treatment effects for both experiments in MG.
Source: calculated based on own data.

Finally, if nonsignificant differences are to be considered, they present mixed results. The pooled and the MG sample confirm H_4. However, the SC sample presents the opposite result. That is, in the southern city, when subjects were told that Paulo considered this project terrible because it went against democratic rights, their understanding of "terrible" was softened, thus reducing their intention to shirk. Whereas the nonsignificance indicates that it should be understood merely as noise, it may also suggest that some bureaucrats may consider threats to democratic rights not as "terrible" as other threats.

Furthermore, the stark difference in the results obtained from the list and the vignette experiments suggests evidence of social desirability bias. While the former allowed a higher sense of anonymity and asked about an "average civil servant," the latter asked for the specific reaction of the subject. Put differently, bureaucrats were more willing to present preferences for shirking and sabotage when

Downloaded from https://www.cambridge.org/core. University of Pittsburgh, on 18 Sep 2021 at 16:04:14, subject to the Cambridge Core terms of use, available at https://www.cambridge.org/core/terms. https://doi.org/10.1017/9781009023504.011

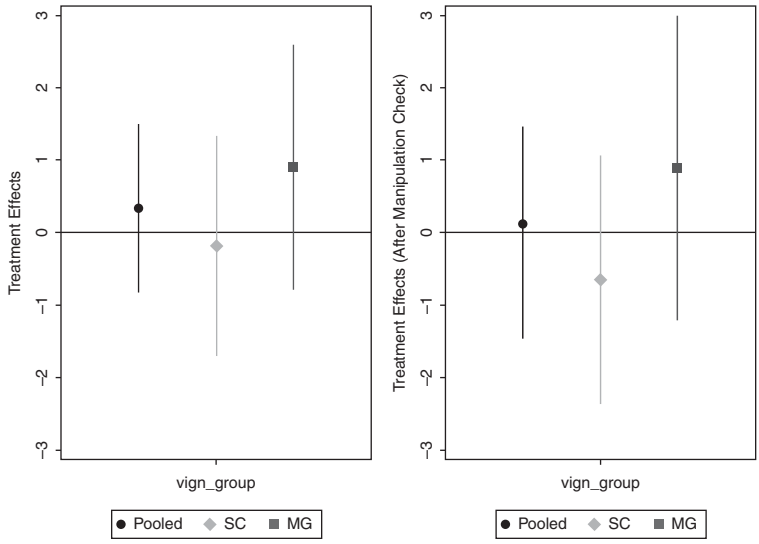


Figure 10.3 Vignette experiment (pre- and postmanipulation check)
The graph on the left presents the treatment effects for the full sample. The graph on the right presents the treatment effects of the sample after excluding subjects who did not pass the manipulation check.
Source: calculated based on own data.

talking about an "unknown peer" than about themselves. A recent study conducted by Gonzales-Ocantos et al. (2012) on vote-buying in Nicaragua presents similar results and reinforces the validity of list experiments to study attitudes that may be affected by social desirability bias.

We present the heterogeneous treatment effects of the shirking and sabotage list experiments in Table 10.4. We must highlight that this is a deviation from our original analysis plan, which was preregistered on the Evidence in Governance and Politics (EGAP) platform. Originally, we proposed studying the heterogeneous treatment effects of the vignette experiment. However, once differences of means were found to be insignificant given our unexpected treatment effects, it made more sense to focus on the experiment that yielded results more relevant to the shirking hypotheses. We added the results of the heterogeneous treatment effects of the sabotage list experiment, even though our hypotheses were only valid for the shirking alternative (Table 10.6).

Downloaded from https://www.cambridge.org/core. University of Pittsburgh, on 18 Sep 2021 at 16:04:14, subject to the Cambridge Core terms of use, available at https://www.cambridge.org/core/terms. https://doi.org/10.1017/9781009023504.011

Table 10.4 *Difference-of-means of list experiments*

	Control	Treatment	Difference	Power
Shirk (pooled)	1.95 (1.03) [68]	2.80 (1.13) [60]	0.84***	1.00
Sabotage (pooled)	1.68 (0.87) [68]	2.72 (1.30) [60]	1.04***	1.00
Shirk (SC)	2.12 (1.12) [34]	2.97 (1.29) [34]	0.85**	1.00
Sabotage (SC)	1.70 (0.90) [34]	3.09 (1.36) [34]	1.38***	1.00
Shirk (MG)	1.79 (0.91) [34]	2.58 (0.86) [26]	0.78**	1.00
Sabotage (MG)	1.65 (0.85) [34]	2.23 (1.07) [26]	0.58*	0.99

In the "Difference" column, *** p-value<0.001; ** p-value<0.01; * p-value<0.05. Standard deviation between parentheses and sample size between brackets.
Source: calculated based on own data.

Table 10.5 *Difference-of-means of vignette experiments (after manipulation check)*

	Control	Treatment	Difference	Power
Pooled	5.24 (3.32) [38]	5.35 (3.42) [57]	0.11	0.06
SC	6.67 (3.10) [21]	6.03 (3.11) [33]	–0.64	0.32
MG	3.47 (2.72) [17]	4.42 (3.68) [24]	0.95	0.43

Note: None of the results are statistically significant at conventional levels. Standard deviation between parentheses and sample size between brackets.
Source: calculated based on own data.

First, subjects who have a tenured position are more likely to concur that civil servants would shirk in face of an undemocratic project. This characteristic, which confirms H_6, represents the second largest difference across groups. However, the opposite is true for the sabotage experiment, since treatment effects were considerably higher among nontenured subjects.

H_6 and H_7 are rejected. Both follow a similar rationale. It was expected that the closer subjects were to their principals, the less prone they would be to affirm that average civil servants shirk in the face of undemocratic projects. However, this is not true for respondents who hold a supervision position or a political appointment.

Downloaded from https://www.cambridge.org/core. University of Pittsburgh, on 18 Sep 2021 at 16:04:14, subject to the Cambridge Core terms of use, available at https://www.cambridge.org/core/terms. https://doi.org/10.1017/9781009023504.011

Table 10.6 ***Heterogenous treatment effects of the list experiments***

Groups	TE (Shirking)	TE (Sabotage)
Tenured	0.96 (0.000) [55]	0.93 (0.000) [47]
Not tenured	0.38 (0.311) [13]	1.46 (0.001) [13]
Boss	0.99 (0.004) [24]	1.00 (0.005) [21]
Not boss	0.77 (0.002) [44]	1.06 (0.000) [39]
Appointee	1.12 (0.005) [20]	1.31 (0.000) [17]
Not appointee	0.74 (0.001) [48]	0.93 (0.000) [43]
Low discretion	0.74 (0.065) [22]	1.58 (0.000) [16]
High discretion	0.90 (0.000) [46]	0.85 (0.000) [44]
Low-to-medium salary	1.06 (0.000) [47]	1.07 (0.000) [39]
High salary	0.38 (0.217) [21]	0.95 (0.007) [21]

Treatment effects (TE) are calculated as the difference of means across groups. They represent the percentage of subjects who potentially chose the fifth element. P-values are presented in parentheses and sample size in brackets.
Source: calculated based on own data.

Heterogeneous treatment effects for the sabotage experiment are mixed. Whereas difference-of-means among bosses is slightly lower than among others, political appointees are considerably more influenced by the treatment effects than others.

H_9 – that is, the prediction that subjects with higher discretion will be more prone to shirk – is also confirmed. Still, the opposite is true in the sabotage experiment. Finally, H_{10} is also validated. It proposed that subjects who perceive their current salary as being the same or lower in the public sector than it could be in the private sector are more willing to shirk than subjects who believe they are better paid now. Similar results are found after the sabotage experiment.

Discussion

This chapter expects to contribute to the literature of comparative public administration and comparative politics – and, more specifically, the debates on public sector motivation and democratic backsliding. It does so by proposing three experimental designs to answer whether bureaucrats work, shirk, or sabotage when

Downloaded from https://www.cambridge.org/core. University of Pittsburgh, on 18 Sep 2021 at 16:04:14, subject to the Cambridge Core terms of use, available at https://www.cambridge.org/core/terms. https://doi.org/10.1017/9781009023504.011

assigned to undertake undemocratic projects. The results confirm six hypotheses and reject three. Although these findings are about Brazil only, they are relevant for the other cases of democratic backsliding found in this book. For example, do bureaucrats in Hungary or Venezuela have similar attitudes about continuing to work in the public sector?

The general finding, therefore, is that civil servants are willing to take democratic norms into account when making decisions. Going against the usual Weberian model of the bureaucrat being apolitical and following the formal rules, these respondents reported that they would consider the extent to which government proposals undermined democracy when making decisions. The decision to work, shirk, or sabotage therefore requires the individual to choose between implementing the policies of a democratically elected government or following their own values about what is substantively democratic. The willingness to shirk or sabotage may be an important barrier to the excesses of populist regimes such as that recently elected in Brazil.

However, this intention to act is shaped by professional characteristics. First, tenured civil servants are more likely to expose a preference for shirking in cases of undemocratic policy reforms than untenured ones. This reinforces the relevance of job stability as a determinant of action against the principal. Additionally, it could also reflect, to a certain extent, a public sector motivation. In other words, tenured civil servants may see the public service differently than temporary untenured employees. Thus, they may try to defend the democratic institutions more than others. The assumption of public sector motivation is enhanced as we confirm that subjects who believe that their salary is low or medium (compared to salaries in the private sector) are more prone to shirk. Thus, their loyalty to the public sector is more related to desire than to necessity.

Contrary to our hypothesized expectations, closeness to the principal enhances the propensity to shirk in the face of policies that restrict the rights of expression and the press. It was theorized that loyalty, professional norms, and peer pressure would make bosses and political appointees more likely to adhere to the wishes of their principals. However, the opposite seems to be true. It may be the case that they are willing to use their position to defend desirable political goals. This would align with the discretion hypothesis – that is, the validated proposition that civil servants with higher degrees of discretion tend

Downloaded from https://www.cambridge.org/core. University of Pittsburgh, on 18 Sep 2021 at 16:04:14, subject to the Cambridge Core terms of use, available at https://www.cambridge.org/core/terms. https://doi.org/10.1017/9781009023504.011

to be more prone to shirk in these cases than other civil servants. Further studies should assess this causal mechanism.

There are two additional findings that should be further explored in future research. First, the vignette and the list experiments led to starkly different results. There are at least two explanations for this. The first, as mentioned earlier, is social desirability bias. Subjects may have felt more comfortable talking about shirking and sabotage when they were not the "focus of the conversation." That is, when talking about "an average civil servant," it was easier to say that shirking or sabotage would take place than when talking about themselves. As noted in the introduction to the volume, shirking and sabotage are often portrayed in popular culture and in the literature as negative behaviors. This peer pressure generates a social desirability bias that influences civil servants even when such behaviors are normatively desirable. Following this rationale, the list experiment allowed them to talk about themselves while avoiding any potential costs that that may have. Alternatively, it may be the case that, during the list experiment, they were actually talking about someone else.

In any case, this opens doors for further studies that consider the costs of deviance. Lab-in-the-field experiments could add costs to shirking – for instance, punishment from the principal or peers (e.g. when a civil servant shirks, she may leave the task, or the problem, to a colleague who may not be happy to be assigned to it). Furthermore, whereas shirking may be an individual decision, it may also depend on collective action. Such experiments should consider willingness to shirk in the face of different settings or players.

Second, treatment effects varied across cities and, most importantly, across groups when comparing the shirking and sabotage alternatives. The first issue should be further addressed through comparative studies that also consider macrolevel variables. In essence, which characteristics of the public department, city, region, or country, among others, lead to different intentions to act? Additionally, why do intentions to shirk and to sabotage vary, sometimes in opposite directions, across groups of professional characteristics? While this work restricted itself to hypothesizing the former, looking into both cases may advance our understanding of bureaucratic behavior.

Finally, democratic backsliding and discussion of democratic backsliding are different elements. The actual costs and the environment faced by bureaucrats during authoritarian regimes are considerably

Downloaded from https://www.cambridge.org/core. University of Pittsburgh, on 18 Sep 2021 at 16:04:14, subject to the Cambridge Core terms of use, available at https://www.cambridge.org/core/terms. https://doi.org/10.1017/9781009023504.011

higher and may lead to different reactions (Schmitter 1972). Furthermore, the perception of subjects with respect to what an undemocratic policy change is varies. This chapter considers it from a broad perspective: a policy that restricts the freedoms of expression and press. It allows comparability and fits the current reality of Brazil, where a new government has recently taken office. However, further studies could consider specific policies, so as to understand how concrete examples affect intention to shirk.

One further piece of ongoing research to help verify these results is a survey experiment of the same sort in the United States, involving civil servants faced with the policies of the Trump administration. Another set of further studies, which is already planned and being implemented, is to use laboratory experiments that will enable us to manipulate the extent of deviation of policies from liberal-democratic norms, as well as possible costs to the respondents, and thus gauge their probable behavior. We cannot, of course, be sure if the results in other systems will be similar, but we can be sure that the challenges to maintaining liberal democracy are similar and significant. Finally, we could attempt interviews with civil servants to assess how they conceptualize the choice to follow policies with which they disagree. We believe our initial research has demonstrated the willingness of civil servants to consider alternatives to implementing some policies, and we will continue to work to explore the external validity of these findings.

Notes

1. Here, we deviate from our preregistered analysis plan. In the original research design, we hypothesized that the higher the administrative level, the higher the treatment effects would be (e.g. federal vs. local level). However, we have been unable to conduct this experiment at an administrative level other than municipalities.
2. Variable names are presented in bold.
3. Instead of asking for age as a continuous number, the questionnaire offers age ranges. This strategy is adopted to assure that subjects will remain anonymous. Once the populations of interest are reasonably large, it is unlikely that this information will be sufficient to identify the respondents.
4. "Some civil servants have great autonomy to make decisions. In other words, they can decide how to implement their tasks, what should be prioritized, which answers should be given in each scenario, etc.

Downloaded from https://www.cambridge.org/core. University of Pittsburgh, on 18 Sep 2021 at 16:04:14, subject to the Cambridge Core terms of use, available at https://www.cambridge.org/core/terms. https://doi.org/10.1017/9781009023504.011

However, other civil servants have to follow strict rules and have no autonomy to make decisions in their day-to-day work. In general, how much autonomy do you have in your daily work? Please answer following the 0–10 scale, where 0 means 'no autonomy' and 10 means 'a lot of autonomy'."

5. The question regarding years of experience follows the same strategy as the one for age – that is, ranges of years.
6. "Imagine that a civil servant, who has the same experience and contacts as you have, decided to leave his current job and look for a job in the private sector. When he finds a new job, what do you think the salary of this ex-civil servant will be? The salary in the private sector will be higher; The salary in the private sector will be the same; The salary in the private sector will be lower."
7. Here, we deviate from the preregistered analysis plan. Whereas we proposed testing for heterogeneous treatment effects based solely on the vignette experiment, we decided to run these tests considering the shirking list experiment. Our reasoning is discussed after the results are presented.

Downloaded from https://www.cambridge.org/core. University of Pittsburgh, on 18 Sep 2021 at 16:04:14, subject to the Cambridge Core terms of use, available at https://www.cambridge.org/core/terms. https://doi.org/10.1017/9781009023504.011